

Jun 16, 2026

DATED

2026

THE BANK OF NEW YORK MELLON
(as Custodian)

- and -

THE BANK OF NEW YORK MELLON
(as Secured Party)

- and -

GOLDMAN SACHS INTERNATIONAL
(as Chargor)

**AMENDMENT AND RESTATEMENT DEED
IN RESPECT OF THE
MASTER TRIPARTY ACCOUNT CONTROL AGREEMENT**

THIS AMENDMENT AND RESTATEMENT DEED (this "**Deed**") is made by way of DEED and is delivered on Jun 16, 2026 2026, by and among:

- (1) **THE BANK OF NEW YORK MELLON**, acting through its London branch at 160 Queen Victoria Street, London, EC4V 4LA (the "**Custodian**");
- (2) **THE BANK OF NEW YORK MELLON, LONDON BRANCH**, acting through its London branch at 160 Queen Victoria Street, London, EC4V 4LA in its capacity as trustee pursuant to the Trust Deed (as defined below) (the "**Secured Party**"); and
- (3) **GOLDMAN SACHS INTERNATIONAL**, a company incorporated under the laws of England and Wales with unlimited liability (registered no 02263951) whose registered office is at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU (the "**Chargor**" and, in its capacity as calculation agent in respect of any Series, the "**Calculation Agent**").

RECITALS:

- (A) The parties have previously entered into a triparty account control agreement dated 23 September 2016 as amended from time to time, including on 29 September 2025 (the "**Original Master TACA**").
- (B) Pursuant to Clause 8.5 of the Original Master TACA, the parties may agree to amend any terms of the Original Master TACA in writing.
- (C) The parties wish to make certain amendments to the Original Master TACA and are entering into this Deed in order to effect those amendments.

IT IS AGREED as follows:

1. **DEFINITIONS AND INTERPRETATION**

- 1.1 Capitalised terms used and not defined herein shall bear the meanings given to them in the Original Master TACA.

2. **AMENDMENT AND RESTATEMENT**

- 2.1 Save for the purposes (where necessary) of construing the provisions of this Deed and, save as expressly set out below, with effect on and from the date hereof (the "**Effective Date**"), the Original Master TACA is hereby amended and restated as set out in Schedule 1 hereto (as so amended and restated, the "**Amended and Restated Master TACA**").
- 2.2 The Amended and Restated Master TACA will only apply to any Notes issued on or after the Effective Date. This does not affect any Notes issued prior to the Effective Date. Notwithstanding the foregoing, in respect of any Notes issued on or after the Effective Date (the "**Tap Notes**") which are intended to be fungible with Notes issued prior to that date (the "**Original Notes**"), the terms of the Original Master TACA (as they applied to the Original Notes) shall, where specified therein, apply to the Tap Notes.

3. **MISCELLANEOUS**

- 3.1 The parties further agree that the Original Master TACA, save as amended by this Deed, shall remain in full force and effect.
- 3.2 This Deed shall be governed by and construed in accordance with English law and the courts of England shall have exclusive jurisdiction to settle any dispute arising out of or in connection with this Deed.

3.3 This Deed may be executed in any number of counterparts each of which when executed and delivered is an original, but all the counterparts together constitute the same document.

IN WITNESS WHEREOF this Deed has been executed as a DEED and delivered on the date stated at the beginning of this Deed.

EXECUTION PAGE

EXECUTED AS A DEED by)
THE BANK OF NEW YORK MELLON,)
LONDON BRANCH)
in its capacity as Secured Party)
acting by)
its duly authorised signatory)

Signature:

Name:

Giuseppa Fonzo
Vice President

Nicolai Gnaciuc

Nicolai Gnaciuc
Authorised Signatory

EXECUTED AS A DEED and THE COMMON SEAL of **GOLDMAN SACHS INTERNATIONAL** was duly affixed and signed by either two Directors, two Managing Directors or a Director/Managing Director and a Secretary duly authorised by, and pursuant to, the resolution of the Board of Directors of Goldman Sachs International dated 29 March 2011, on the date stated at the beginning of this Deed.

By:



Name: Inna Shaykevich

Managing Director

By:



Name: Nick Webb

Managing Director



THE BANK OF NEW YORK MELLON,
LONDON BRANCH

in its capacity as Custodian
acting by its duly authorised signatory

Stuart Bird
Name:

)
)
)
)
)
)

Signature: 

Jun 16, 2026

SCHEDULE 1

Form of Amended and Restated Master Triparty Account Control Agreement



AMENDED AND RESTATED
MASTER TRIPARTY ACCOUNT CONTROL AGREEMENT

DATED ON Jun 16, 2026 2026

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THIS AMENDED AND RESTATED TRIPARTY ACCOUNT CONTROL AGREEMENT (this "**Agreement**") is made by way of DEED and is delivered and further amended and restated on Jun 16, 2026 2026 by and among:

- (1) The Bank of New York Mellon, London Branch, 160 Queen Victoria Street, London, EC4V 4LA (the "**Custodian**");
- (2) The Bank of New York Mellon, London Branch, 160 Queen Victoria Street, London, EC4V 4LA in its capacity as trustee pursuant to the Trust Deed and as principal pursuant to the Korean Law Security Agreement, as applicable (each as defined below) (the "**Secured Party**"); and
- (3) Goldman Sachs International of Plumtree Court, 25 Shoe Lane, London, EC4A 4AU (the "**Chargor**" and, in its capacity as calculation agent in respect of any Series, the "**Calculation Agent**").

WHEREAS:

- (A) The Chargor has authorised the creation and issue of senior secured notes to be issued in Series in accordance with the Principal Trust Deed. Each Series of senior secured notes will be constituted by a Supplemental Trust Deed.
- (B) If so specified in the Supplemental Trust Deed and Korean Law Security Agreement relating to a Series, the Chargor will agree to charge in favour of the Secured Party certain Cash and Securities held in one or more Securities account(s) and/or Cash custody account(s) as security for such Series.
- (C) The Custodian, pursuant to the dealer safekeeping agreement between the Chargor and the Custodian dated 17 November 2008 and as amended from time to time (the "**Dealer Safekeeping Agreement**"), currently acts as a custodian and banker for the Chargor and maintains, as at the date of this Agreement, one or more cash and securities custody accounts for the Chargor (the "**Chargor's Custody Account(s)**").
- (D) The Custodian has agreed to open one or more segregated Securities custody accounts and Cash custody accounts in its books and records in the name of the Chargor to which Eligible Collateral shall be transferred by the Chargor in accordance with the applicable Supplemental Trust Deed and Korean Law Security Agreement as security for the Series to which such Supplemental Trust Deed relates (such account(s) having the designation the "**Segregated Account(s)**").
- (E) The number(s) of the Segregated Account(s) relating to a particular Series shall be set out in the Schedules to the Supplemental Trust Deed relating to that Series.
- (F) The parties wish to agree the terms on which the Segregated Account(s) for each Series will be operated and maintained.
- (G) It is intended that this Agreement takes effect as a deed notwithstanding the fact that a party may execute this document only under hand.
- (H) With respect to any Series, the Secured Party and the Chargor may also enter into a Korean law security agreement for that series, if applicable (the "**Korean Law Security Agreement**"). Pursuant to such Korean Law Security Agreement, the Chargor as pledgor will agree to grant a first priority continuing security interest (*Kun Jil Kwon*) in favour of the Secured Party as pledgee over (i) certain Eligible Korean Securities which are credited to the Chargor's Securities account at the Korean Sub-custodian (the "**Korean Securities Account**") and (ii) one or more of the Chargor's Cash accounts at the Korean Sub-custodian to which Cash is deposited by the Chargor (the "**Korean Cash Account**", together with the Korean Securities Account, the "**Korean Pledged Account(s)**").

In consideration of the parties' mutual obligations set forth in this Agreement:

1. **DEFINITIONS**

- 1.1 In this Agreement the following words have the following meanings respectively and, in addition, references in this Agreement to Posted Collateral in the Segregated Account(s) or transferred to, delivered to, held in or received in the Segregated Account(s) shall be construed as also referring, where applicable, to such Posted Collateral being credited to the Segregated Account(s):

"Additional Eligible Collateral" has the meaning given to such term in clause 2.1(c)(ii)(1).

"Agreement Termination Date" has the meaning given to such term in clause 7.2.

"Alternative Collateral" means Eligible Collateral provided by way of substitution in accordance with the provisions of clause 2.1(c)(iii).

"Authorised Person" means any person duly authorised to give Oral Instructions and Written Instructions on behalf of the Chargor or the Secured Party, such persons and their specimen signatures to be designated in a notice in the form of Annex 3 or in the case of the Chargor in the Dealer Safekeeping Agreement.

"Base Currency" means US Dollars (\$) or any other currency the Custodian may support from time to time.

"Broker" means in respect of China Connect Securities, Pershing LLC or any other replacement broker acceptable to Custodian and Chargor and appointed by Chargor on an agency basis.

"Business Day" means a day which is (a) a Business Day pursuant to the Trust Deed, (b) if applicable for a Series, a Business Day pursuant to the Korean Law Security Agreement and (c) a day on which the Custodian is open for business in connection with this Agreement.

"Cash" means the money and currency of any jurisdiction which the Custodian accepts for deposit in a Segregated Account.

"CCASS" means the Hong Kong Central Clearing and Settlement System operated by Hong Kong Securities Clearing Company Limited.

"CCASS Rules" means the general rules of CCASS, as amended for the purposes of implementing China Connect, and as amended, supplemented, modified and/or varied from time to time.

"China Connect" means the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shanghai Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between The Stock Exchange of Hong Kong Limited and Shanghai Stock Exchange and/or the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shenzhen Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between The Stock Exchange of Hong Kong Limited and Shenzhen Stock Exchange (as the case may be).

"China Connect Market" means the Shanghai Stock Exchange and/or the Shenzhen Stock Exchange (as the case may be).

"China Connect Securities" means any securities listed and traded on a China Connect Market which may be traded by Hong Kong and international investors under China Connect.

"Clearing System" means any securities depository, clearing agency, book-entry system or other entity that is authorised to provide handling, clearing or safekeeping services, including, but not limited to, Clearstream, Euroclear, Crest, the Federal Reserve Bank of New York/Treasury Book-Entry System, the Depository Trust and Clearing Corporation, the Korea Securities Depository and the Participants Trust Company.

"Collateral Valuation Method" means the calculation methodology the parties elect in each relevant Eligible Collateral Schedule.

"Collateral Value" means the amount calculated in accordance with the Collateral Valuation Method as agreed in the Eligible Collateral Schedule.

"Confirmation Instruction" means in relation to any Series an Instruction substantially in the form annexed at Annex 4 (or such other form as the Custodian may notify the Secured Party and the Chargor from time to time) relating to that Series.

"Covered Entity Party" shall have the meaning given to such term in clause 8.15.

"Data Controller" shall have the same meaning as in the Data Protection Laws.

"Data Protection Laws" means all applicable laws and regulations relating to the processing of Personal Data, including The General Data Protection Regulation (EU) 2016/679 ("**GDPR**") and all Member State laws, rules, regulations and regulatory guidance supplementing the GDPR and any laws relating to the processing of Personal Data enacted in the United Kingdom, including the GDPR as incorporated into the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018 ("**UK GDPR**") and the UK Data Protection Act 2018.

"Data Subject" shall have the same meaning as in the Data Protection Laws.

"Disclosing Party" means the party disclosing Personal Data.

"Distributions" means, with respect to Posted Collateral other than cash, all principal, interest and other payments and distributions of cash or other property with respect to the Posted Collateral to the extent that the Chargor is entitled to remittance of the same pursuant to the Dealer Safekeeping Agreement.

"Electronic Means" shall mean the following communications methods: (a) non-secure and/or deemed non-secure methods of transmission or communication such as email and (b) secure electronic transmission containing applicable authorisation codes, passwords and/or authentication keys issued by the Custodian, or another method or system specified by the Custodian as available for use in connection with its services hereunder.

"Eligible Collateral" means with respect to each Series, Cash and the types of Securities designated as "Eligible Collateral" for that Series in the Supplemental Trust Deed for that Series and as reflected in the relevant Eligible Collateral Schedule.

"Eligible Collateral Schedule" means a schedule in electronic form, constituted and agreed by the parties in the Custodian digital collateral schedule manager interface known as "RULE" in relation to the relevant Series, specifying the Eligible Collateral and other elections as relevant. For the avoidance of doubt, in the event of any inconsistency between the Eligible Collateral in the Supplemental Trust Deed and the Eligible Collateral and other

elections set out in the Eligible Collateral Schedule as transposed by the Chargor, the Eligible Collateral Schedule shall prevail.

"Eligible Korean Securities" means Eligible Collateral comprising Korean Securities.

"FCA" means the Financial Conduct Authority (and any successor regulatory authority) whose registered office is at 12 Endeavour Square, London E20 1JN, United Kingdom.

"FCA Rules" means the rules promulgated by the FCA under FSMA as amended or replaced from time to time.

"FSMA" means the Financial Services and Markets Act 2000.

"FSS" means the Financial Supervisory Service of Korea and any successor regulatory authority.

"Information Website" means the website provided by the Custodian for regulatory information whose address is at <https://www.bny.com/corporate/emea/en/regulatory-information.html> or such other website or websites as the Custodian may notify to the Chargor from time to time.

"Korean Cash Account" has the meaning given to such term in Recital (H).

"Korean Exchange" means the Korea Exchange, Inc.

"Korean Pledged Accounts" has the meaning given to such term in Recital (H).

"Korean Pledged Securities" means, in relation to a Series, Eligible Korean Securities held in the Korean Securities Account that are registered as pledged in respect of such Series.

"Korean Securities" means securities that are listed, traded or dealt on the Korean Exchange and registered with the Korea Securities Depository.

"Korean Securities Account" has the meaning given to such term in Recital (H).

"Korean Sub-custodian" means, in relation to a Series, the local Korean Sub-custodian with which the Korean Pledged Accounts are established and maintained.

"Losses" has the meaning given to such term in clause 2.1(i)(i).

"Margin Excess" has the meaning given to such term in clause 2.1(c)(ii)(2).

"Market Value" means, as at any date, in relation to Securities, Cash or any certificate of deposit (as applicable), the value as described in the Operating Guidelines for International Collateral Management (as may be amended from time to time by The Bank of New York Mellon).

"Notes" means any senior secured notes issued by the Chargor pursuant to the Trust Deed.

"Notice of Acknowledgement and Consent" means, in relation to any Series, a written acknowledgement of the Notice of Korean Pledge by the Korean Sub-custodian substantially in the form set out in Annex 7 to this Agreement.

"Notice of Exclusive Control" means, in relation to any Series, a written notice relating to that Series from the Secured Party substantially in the form set out in Annex 1 to this Agreement.

"Notice of Intended Enforcement" means, in relation to any Series, a written notice relating to that Series from the Secured Party in respect of Korean Pledged Securities and any rights, titles and interests in and to the Korean Cash Account substantially in the form set out in Annex 9 to this Agreement.

"Notice of Korean Pledge" means, in relation to any Series, a written notice relating to that Series from the Chargor in respect of Eligible Korean Securities and any rights, titles and interests in and to the Korean Cash Account substantially in the form set out in Annex 6 to this Agreement.

"Notice of Termination of Korean Pledge" means, in relation to any Series, a written notice relating to that Series from the Secured Party in respect of the Korean Law Security Agreement and Korean Pledged Securities and any rights, titles and interests in and to the Korean Cash Account substantially in the form set out in Annex 8 to this Agreement.

"Oral Instructions" means verbal instructions or directions actually received by the Custodian.

"Permitted Purpose" means the purposes set out in (i) this Agreement and (ii) the Receiving Party's privacy notice (as notified by the Receiving Party).

"Personal Data" has the meaning given to such term in clause 2.2(k)(x).

"Posted Collateral" means, in respect to each Series, the Eligible Collateral from time to time credited to the Segregated Account(s) (to the extent not thereafter debited from such accounts in accordance with this Agreement).

"Principal Trust Deed" means the trust deed dated as of 23 September 2016 as amended and restated or supplemented from time to time and entered into between the Chargor and the Secured Party.

"Property" means Securities, Cash and Distributions.

"Receiving Party" means the party receiving the Personal Data.

"Required Collateral Amount" means, with respect to each Series, the amount required to be collateralised pursuant to the Supplemental Trust Deed and the Korean Law Security Agreement relating to that Series as instructed to the Custodian pursuant to clause 2.1(b) below.

"Restricted Securities" has the meaning given to such term in clause 2.1(b)(v).

"Sanctions" means economic sanctions administered by any governmental authority of the United States (including the Office of Foreign Assets Control of the U.S. Department of the Treasury (OFAC)), the United Nations Security Council, the European Union or HM Treasury.

"Securities" means, with respect to each Series, all debt and equity securities (including Korean Securities) and other instruments and intangible assets (including instruments representing the right to receive, purchase or subscribe to the foregoing or representing other rights or interests in the foregoing) as may be agreed upon from time to time by the Custodian and the Chargor and the Secured Party and which shall from time to time be delivered to or received by the Custodian and/or any Sub-custodian or Clearing System for deposit in the Segregated Account(s) for that Series.

"SEHK Rules" means the rules of The Stock Exchange of Hong Kong Limited, as amended for the purposes of implementing China Connect, and as amended, supplemented, modified and/or varied from time to time.

"Series" means any series of Notes.

"Standing Substitution Instructions" has the meaning given to such term in clause 2.1(b)(iv).

"Sub-custodian" means a bank or financial institution appointed by the Custodian to act as a sub-custodian from time to time, including any Korean Sub-custodian but excluding a Clearing System.

"Successor Entity" has the meaning given to such term in clause 8.8.

"Supplemental Trust Deed" means with respect to any Series, the trust deed supplemental to the Principal Trust Deed for that Series entered into between the Chargor and the Secured Party.

"Trust Deed" means with respect to any Series, the Principal Trust Deed together with the Supplemental Trust Deed relating to that Series.

"Written Instructions" means written communications actually received by the Custodian by S.W.I.F.T., letter or such other method specified by the Custodian from time to time as available for use in connection with the services provided under this Agreement.

1.2 Interpretation

In this Agreement:

- (a) **"affiliated company", "associate", "control"** (and similar words) and **"nominee company"** shall have the same meaning as in the FCA Rules;
- (b) terms within this Agreement that are defined in the recitals have the meaning given to such terms in the recitals;
- (c) references to an Annex or a clause shall, unless indicated otherwise, be references to Annexes to, or clauses of, this Agreement;
- (d) references to "this Deed" or "this Agreement" shall be to this Agreement and include its introduction and Annexes;
- (e) references to any provision of a statute, order, regulation or other piece of legislation refer to that provision as amended or re-enacted from time to time;
- (f) words in the singular include the plural and vice versa; and
- (g) references to a person include any individual firm, corporation, unincorporated association, government, state or agency of state, association, partnership or joint venture (whether or not having a separate legal personality).

2. TERMS

Each of the Custodian, the Secured Party and the Chargor hereby agrees this Agreement shall apply with respect to a Series if the Supplemental Trust Deed and, if applicable, Korean Law Security Agreement relating to such Series specifies that such Series shall be secured by collateral subject to the terms of this Agreement as follows:

2.1 Standard Terms

(a) The Segregated Account(s) for each Series shall be governed by the Dealer Safekeeping Agreement, pursuant to which Securities and Cash credited to such Segregated Account(s) for that Series will be held for and on behalf of the Chargor in accordance with the Dealer Safekeeping Agreement, as amended by the terms of this Agreement. Notwithstanding clause 2.1(b)(vi) below, the Chargor and the Custodian agree that by execution of this Agreement and the Supplemental Trust Deed, the Chargor shall be deemed to have notified the Custodian of the charge in relation to the Posted Collateral for that Series created by the Chargor in favour of the Secured Party pursuant to that Supplemental Trust Deed (the "**Notice**") and the Custodian shall be deemed to have acknowledged the creation of such charge as notified by the Chargor to the Custodian (the "**Acknowledgement**"), in each case both Chargor and Custodian acting in accordance with the provisions of the Dealer Safekeeping Agreement. In relation to and notwithstanding the Notice and the Acknowledgement, the Custodian hereby states that, and the Chargor and Secured Party hereby agree that:

- (i) the Custodian's only obligations in connection with the Posted Collateral held by the Custodian pursuant to this Agreement are the Custodian's obligations as set out in and subject to the terms of this Agreement;
- (ii) no terms of this Agreement are amended (or shall be deemed amended) by the provision of the Notice to the Custodian or the Acknowledgement to the Custodian and no further notice will be provided to the Custodian;
- (iii) the terms of this Agreement shall prevail in the event of any conflict between the Notice and the terms of this Agreement and no further notice will be provided to the Custodian; and
- (iv) neither the Notice nor the Acknowledgement to such Notice shall create (or be deemed to create) any obligations for the Custodian which are in addition to or vary the obligations of the Custodian under this Agreement.

The continued use by the Chargor and the Secured Party of the services provided by the Custodian under this Agreement shall be deemed acceptance by the Chargor and the Secured Party of the statements within clause 2.1(a)(i), (ii), (iii) and (iv).

(b) **Delivery and Custody of Collateral**

(i) **Delivery of Eligible Collateral.**

- (1) On each Business Day that any Series of Notes is outstanding, the Calculation Agent shall, on behalf of the Chargor, deliver to the Custodian prior to a time specified by the Custodian, a Confirmation Instruction (copied to the Chargor) setting out the required value of Posted Collateral on such Business Day, being equal to the Required Collateral Amount for that Series on such day. If the Custodian does not receive the Confirmation Instruction by the relevant time, it shall promptly inform the Calculation Agent, the Secured Party and the Chargor, via access to the online electronic platform, and await the Confirmation Instruction. For any Series of Notes, until the Confirmation Instruction is received by the Custodian, the Required Collateral Amount for that Series on any Business Day shall remain the last notified Required Collateral Amount for that Series of Notes.

- (2) The Chargor agrees, by close of business on the relevant Business Day, to deliver or cause to be delivered to the Custodian for deposit in the Chargor's Custody Account, Eligible Collateral having a Collateral Value (together with any Eligible Collateral already held in the Chargor's Custody Account) that is equal to or greater than the Required Collateral Amount of each Series.

(ii) **Identification of Eligible Collateral.**

The Custodian shall ascertain that all securities and cash to be transferred to the Segregated Account(s) on any Business Day comprise Eligible Collateral for that Series. Any securities or cash which are not Eligible Collateral shall not be included in the calculations set forth in clause 2.1(c)(i) below and the Custodian shall immediately notify the Chargor that the securities and cash are not Eligible Collateral for that Series and such securities and cash shall not be transferred to the Segregated Account(s) of that Series but shall be returned promptly to the Chargor or remain in the Chargor's Custody Account. The Chargor may, if it is able to do so on or before close of business on such Business Day, substitute Alternative Collateral. Upon ascertaining that all such Securities and Cash comprise Eligible Collateral for a Series, the Custodian shall transfer such Securities and Cash from the Chargor's Custody Account to the Segregated Account(s) for that relevant Series as Posted Collateral for that Series.

(iii) **Notification of Delivery.**

The Custodian shall, as soon as practicable after receipt thereof, notify the Secured Party and the Chargor of the delivery of Posted Collateral to the Segregated Accounts, for a Series and whether or not the Posted Collateral so delivered, when aggregated with the Collateral Value of the Posted Collateral already present in the Segregated Account for that Series prior to the delivery of the new Posted Collateral, has a Collateral Value that is at least equal to or in excess of the Required Collateral Amount for that Series.

- (iv) If the Custodian is made aware of an impending Distribution on any Posted Collateral of any Series, the Custodian shall not be required to notify the Secured Party or the Chargor but shall act in accordance with the prior Written Instructions of Chargor specifying the required treatment in respect of such Posted Collateral (the "**Standing Substitution Instructions**") unless the Custodian receives contrary Written Instructions from Chargor no later than two Business Days prior to the relevant income payment date. Notwithstanding any such Instruction, all Distributions received and all interest paid in relation to the Posted Collateral of any Series shall be credited to the Chargor's Custody Account or, to the extent such Distributions or interest do not constitute Margin Excess (as defined in clause 2.1(c)(ii)(2) below), to the Segregated Account of that Series. After receipt by the Custodian, in accordance with clause 2.1(e), of a Notice of Exclusive Control with respect to a Series, (A) any Distributions with respect to, and (B) any interest (to be deemed to accrue at the interest rate agreed from time to time between the Chargor and the Custodian) on cash constituting, Posted Collateral in each case held by the Custodian in the Segregated Account(s) of that Series shall be credited to the Segregated Account(s) of that Series.

(v) **No Duties.**

The Custodian shall have no duties hereunder with respect to monitoring whether any Eligible Collateral includes "restricted securities" within the meaning of Rule 144 of the Securities Act of 1933, as amended, or which are otherwise subject to any legal, regulatory or contractual restrictions on transfer (collectively, "**Restricted Securities**") or to prevent Restricted Securities from being transferred to the Segregated Accounts.

(vi) **Notice of Pledge.**

At any time prior to the Custodian's receipt of a Notice of Exclusive Control, the Chargor may deliver to the Custodian a fixed date stamped Notice of Korean Pledge addressed to the Korean Sub-custodian giving notice of the Secured Party's security interest over the Eligible Korean Securities and Cash held in the Korean Pledged Account(s) and requesting the Korean Sub-custodian to record such security interest of the Secured Party. Promptly upon receipt of the Notice of Korean Pledge, the Custodian shall forward the Notice of Korean Pledge to the Korean Sub-custodian and request the Korean Sub-custodian to acknowledge receipt of the Notice of Korean Pledge by delivering to the Custodian acting on behalf of the Chargor a Notice of Acknowledgement and Consent. The Custodian shall take all reasonable steps to obtain the Notice of Acknowledgement and Consent with a fixed-date stamp affixed (where required) thereon from the Korean Sub-custodian and inform the Chargor and Secured Party promptly upon receipt of the Notice of Acknowledgement and Consent from the Korean Sub-custodian.

(vii) **Notice of Termination of Pledge**

- (1) Promptly upon termination of the Korean Law Security Agreement, the Secured Party shall deliver to the Custodian a Notice of Termination of Korean Pledge (i) giving notice of the termination of the Korean Law Security Agreement, and (ii) requesting the Korean Sub-custodian remove the record of the security interest of the Secured Party from the Korean Pledged Account(s).
- (2) Promptly upon receipt of the Notice of Termination of Korean Pledge, the Custodian shall forward the Notice of Termination of Korean Pledge to the Korean Sub-custodian and request that the Korean Sub-custodian acknowledge receipt of the Notice of Termination of Korean Pledge and remove the pledge registration over certain Posted Collateral comprising Korean-listed Securities that are deposited by the Chargor in the Korean Pledged Account(s). The Custodian shall take all reasonable steps to obtain confirmation from the Korean Sub-custodian and inform the Chargor and Secured Party promptly upon receipt of confirmation from the Korean Sub-custodian.

(viii) **Further Instruments**

- (1) Upon enforcement of the Korean Law Security Agreement, the Secured Party shall deliver to the Custodian a Notice of Intended Enforcement and power of attorney duly executed by the Secured Party authorising the Korean Sub-custodian to act on behalf of the Secured Party in connection with the exercise of its rights under the Korean Law Security Agreement.

- (2) Upon receipt of the Notice of Intended Enforcement and power of attorney, the Custodian shall forward those instruments to the Korean Sub-custodian as soon as reasonably practicable and will take all reasonable steps to obtain an acknowledgement of such notice from the Korean Sub-custodian and shall inform the Chargor and Secured Party promptly upon receipt of acknowledgement from the Korean Sub-custodian.

(c) **Valuation and Substitution of Securities**

(i) **Valuation of Securities.**

At the opening of each Business Day during which any Series is outstanding, the Custodian shall determine the Collateral Value of Posted Collateral in the Segregated Account(s) of that Series.

(ii) **Margin Maintenance.**

- (1) **Margin Deficit.** If the aggregate value of the Required Collateral Amount of any Series on any Business Day is greater than the aggregate Collateral Value of Posted Collateral in the Segregated Account(s) of that Series, the Custodian shall promptly notify the Chargor. On the date of such notice, the Chargor shall instruct the Custodian to transfer from the Chargor's Custody Account(s) to the Segregated Account(s) of that Series sufficient additional Eligible Collateral ("**Additional Eligible Collateral**") so that, after transfer of such Additional Eligible Collateral to the Segregated Account(s) of that Series, the aggregate Collateral Value of Posted Collateral (including such Additional Eligible Collateral) equals or exceeds the aggregate value of the Required Collateral Amount of that Series. All Additional Eligible Collateral transferred to such Segregated Account(s) shall be deemed to be Posted Collateral for that Series for the purposes of this Agreement. The Custodian shall also promptly notify the Chargor in writing if there is insufficient Additional Eligible Collateral in the Chargor's Custody Account(s) and await further Instructions.
- (2) **Margin Excess.** If the aggregate Collateral Value of the Posted Collateral held in the Segregated Account(s) of any Series on any Business Day exceeds the aggregate value of the Required Collateral Amount of that Series (the amount of such excess being the "**Margin Excess**"), the Custodian shall transfer equivalent Eligible Collateral from the Segregated Account(s) of that Series to the Chargor's Custody Account(s) having an aggregate Collateral Value equal to the Margin Excess. The Secured Party has authorised the Custodian to transfer Eligible Collateral from the Segregated Account(s) pursuant to this clause and the Chargor hereby authorises the Custodian to act on its behalf in selecting the Eligible Collateral to be so transferred. All Eligible Collateral transferred out of any of the Segregated Account(s) in accordance with this sub-clause (2) shall cease to be Posted Collateral for the purposes of this Agreement.

(iii) **Substitution.**

The Custodian, upon Instructions from the Chargor received by the Custodian by the relevant deadline for the applicable Clearing System or Sub-custodian (as notified by the Custodian to the Chargor from time to time) on any Business Day, and without the consent of the Secured Party, shall transfer equivalent Eligible Collateral from the Segregated Account(s) of any Series to the Chargor's Custody Account(s) in accordance with the relevant deadline set out above against transfer, by way of substitution, to the Segregated Account(s) of that Series of Alternative Collateral determined by the Custodian to have a Market Value not less than the aggregate value of the Eligible Collateral being substituted. Each of the Chargor and the Secured Party understands and acknowledges that such substitution may not occur simultaneously if the operating hours of any Clearing Systems or Sub-custodians involved in such substitution do not coincide (whether as a result of time differences or any other factor). If there is insufficient Alternative Collateral in the Chargor's Custody Account(s), including when as described in the preceding sentence, the Chargor authorises the Custodian to transfer Cash having the same Market Value as the substituted Eligible Collateral (and, for the purposes of this clause only, Cash shall be deemed to be Eligible Collateral notwithstanding the provisions of any agreement to the contrary) from the Chargor's Custody Account(s) to the Segregated Account(s) of that Series against the transfer of equivalent Eligible Collateral from the Segregated Account(s) of that Series to the Chargor's Custody Account(s). If there is insufficient cash available in the Chargor's Custody Account(s), the Custodian shall reduce the amount of the equivalent Eligible Collateral transferred from the Segregated Account(s) of that Series to the Chargor's Custody Account(s) so that its Collateral Value is equal to or less than the Collateral Value of such cash. If no cash is available in the Chargor's Custody Account(s) the Custodian shall delay the transfer of equivalent Eligible Collateral from the Segregated Account(s) of that Series until sufficient Alternative Collateral has been transferred to the Segregated Account(s) of that Series.

- (d) At all times prior to the Custodian's receipt of a Notice of Exclusive Control relating to any Series:
 - (i) The Custodian shall act solely in accordance with the Instructions given by the Secured Party in relation to the Posted Collateral for that Series, provided that on the date of this Agreement, the Secured Party shall be deemed to have delivered Instructions to the Custodian that the Custodian shall, at all times prior to the Custodian's receipt of a Notice of Exclusive Control relating to that Series, act solely in accordance with the Instructions given by the Chargor which Instructions shall not be given other than to (A) substitute Eligible Collateral of the same or greater value in accordance with clause 2.1(c)(iii) and/or (B) withdraw excess Eligible Collateral in accordance with clause 2.1(c)(ii)(2), subject to any exercise of the Custodian's rights under clause 2.1(j). The Chargor covenants for the benefit of the Secured Party, that (1) it will not deliver Instructions to the Custodian except in circumstances where it is entitled to do so pursuant to this Agreement, the Dealer Safekeeping Agreement and the terms of the applicable Supplemental Trust Deed, and (2) it will keep the Secured Party informed of any Instructions given by it to the Custodian. The Custodian shall have no duty to determine whether the Chargor has complied with the immediately preceding sentence nor shall this clause 2.1(d)(i) (including such covenant by the Chargor) constitute a limitation on the Custodian's

right to act upon Instructions given by the Chargor without enquiry or on the Custodian to exercise or act on any of its rights and obligations under this Agreement.

- (ii) The Custodian shall provide the Secured Party, and the Chargor hereby gives its consent to such provision, and the Chargor with statements reflecting Posted Collateral in the Segregated Account(s) for each Series on each Business Day that Series is outstanding or as otherwise requested by the Secured Party or the Chargor. The Secured Party and the Chargor shall promptly review all such statements and the Chargor or the Secured Party, as the case may be, shall promptly advise the Custodian of any error, omission or inaccuracy or inconsistency in such statements and, in the case of the Secured Party only, of any deficiency in the total amount of Posted Collateral in the Segregated Account(s) of any such Series. The Custodian shall undertake to correct any deficiency, errors, omissions, inaccuracies or inconsistencies reported to the Custodian by the Secured Party or the Chargor. Any such corrections shall be reflected on subsequent statements. The Secured Party or the Chargor may elect to have statements sent by electronic mail ("**email**") to a specified email address. The Secured Party hereby authorises the Chargor to make such election. Such electronic transmissions are not encrypted and therefore are non-secure. There are other inherent risks in communicating by email, such as the possibility of virus contamination and disruptions in service. The Custodian shall not, in the absence of its negligence, fraud or wilful default, be liable for any Losses suffered by the Secured Party or the Chargor or any third party as a result of it complying with a request to use email to provide statements.
 - (iii) Nothing herein shall be construed as creating a direct custodial relationship between the Custodian, as custodian or banker, and the Secured Party in respect of the Segregated Account(s).
 - (iv) No custodial relationship or other relationship is created between the Custodian and the Secured Party under this Agreement.
 - (v) The Secured Party may in relation to any Series, subject to the terms of this Agreement and of the applicable Supplemental Trust Deed, deliver to the Custodian, with a copy to the Chargor, a Notice of Exclusive Control relating to that Series.
 - (vi) The Secured Party shall not sell, assign, pledge, charge, encumber, rehypothecate, invest, use, commingle, transfer, dispose of or otherwise grant any third party an interest in any Posted Collateral.
 - (vii) Posted Collateral held in the Segregated Account(s) shall be identified by the Custodian in its books and records as belonging to the Chargor but subject to a security interest granted to the Secured Party.
- (e) The Secured Party covenants for the benefit of the Chargor, that:
- (i) it will not deliver a Notice of Exclusive Control to the Custodian until all of the Secured Party's rights of enforcement pursuant to the Supplemental Trust Deed and, if applicable, the Korean Law Security Agreement have fully accrued following the expiration of any applicable notice requirement or grace period;

- (ii) in respect of any Posted Collateral comprising Eligible Korean Securities, it will send to the Custodian simultaneously the Notice of Exclusive Control and a Notice of Intended Enforcement; and
- (iii) it will deliver to the Chargor a copy of the Notice of Exclusive Control at the same time such notice is delivered to the Custodian.

The Secured Party and the Chargor each acknowledge and agree that, without prejudice to the other provisions of this Agreement, the Custodian shall have no duty to determine whether the Secured Party has complied with this clause 2.1(e) nor shall such covenant constitute a limitation on the Custodian's right to act upon a Notice of Exclusive Control without inquiry.

- (f) Upon the Custodian's receipt of a Notice of Exclusive Control relating to any Series the Custodian shall:
 - (i) act solely in accordance with the Instructions given by the Secured Party in relation to the Segregated Account(s) for that Series, without further enquiry and in reliance upon its receipt of any Notice of Exclusive Control and Notice of Intended Enforcement relating to that Series reasonably believed by the Custodian to have been duly authorised and delivered by the Secured Party;
 - (ii) as soon as reasonably practicable accept no further Instructions from the Chargor for the transfer of any Posted Collateral out of the Segregated Account(s) for that Series;
 - (iii) use reasonable efforts to notify the Chargor promptly of the Custodian's receipt of the Notice of Exclusive Control and the Notice of Intended Enforcement; and
 - (iv) shall not be liable for any Losses if the FSS and/or other regulatory authority do not give the requisite approvals or consents or take any action which prevents, delays or otherwise affects the ability of the Custodian (or Sub-custodian) to carry out the Instructions given by the Secured Party in paragraph (i) above.
- (g) Any Notice of Exclusive Control, Notice of Korean Pledge, Notice of Acknowledgement and Consent, Notice of Termination of Korean Pledge or Notice of Intended Enforcement shall be delivered to the Custodian substantially in the form set out in Annexes 1, 6, 7, 8, and 9 respectively and at the address shown in Annex 2.
- (h) Following the Custodian's receipt of a Notice of Exclusive Control relating to any Series and the Custodian's delivery of the Posted Collateral for that Series pursuant to the Notice of Exclusive Control, which delivery Instructions from the Secured Party will be given to the Custodian at the same time with that Notice of Exclusive Control, this Agreement shall terminate with respect to that Series.
- (i) **Standard of Care and Indemnity**
 - (i) Notwithstanding any other provision in this Agreement, the Custodian shall not be liable for any costs, expenses, damages, liabilities or claims, including attorneys' fees (collectively, "**Losses**") incurred by or asserted against the Chargor or the Secured Party in connection with this Agreement (including Losses which are incurred by reason of the insolvency of or any action or inaction by any Sub-custodian in relation to any Posted Collateral),

except those Losses arising out of the negligence, fraud or wilful default of the Custodian or that of any Sub-custodian which is its affiliate. The Custodian shall have no liability whatsoever for any Losses resulting from the insolvency, action or inaction of any Clearing System. In no event, whether for negligence, breach of contract, misrepresentation or otherwise, shall the Custodian be liable to the Chargor, the Secured Party or any third party for special, indirect or consequential damages, or lost profits or loss of business, arising under or in connection with this Agreement. The Custodian may, with respect to questions of law, apply for and obtain the advice and opinion of counsel.

- (ii) The Custodian shall not be liable for any Losses resulting from the action, inaction or insolvency of a Sub-custodian (other than a Sub-custodian which is the Custodian's affiliate) in performing any duties or obligations under or in relation to this Agreement, except those Losses arising out of (A) the Custodian's failure to exercise reasonable care in monitoring the services and reports provided to it by such Sub-custodian; or (B) the Custodian's negligence or bad faith in the selection of such Sub-custodian in light of market practice.
- (iii) With respect to any Losses incurred by the Chargor or the Secured Party as a result of the action, inaction or insolvency of a Sub-custodian which is not an affiliate of the Custodian, the Custodian shall take appropriate action to recover such Losses from such Sub-custodian, and the Custodian's sole responsibility and liability to the Chargor or the Secured Party shall be limited to amounts so received from such Sub-custodian (exclusive of costs and expenses incurred by the Custodian). At the Custodian's discretion, if possible and if requested by the Chargor, the Custodian shall permit the Chargor to participate (at the Chargor's expense) in any action by the Custodian against a Sub-custodian in such a case, but solely to the extent of the assets of the Chargor held by such Sub-custodian. The Custodian and the Secured Party hereby acknowledge and agree that any amount recovered pursuant to this clause shall: (A) if there is a margin deficit pursuant to clause 2.1(c)(ii), be credited by the Custodian to the Segregated Account in relation to the Series to which such margin deficit relates (or, if more than one Series has a margin deficit, the Segregated Account of each such Series pro rata to the amount of each such deficit) and thereafter to the Chargor's Custody Account(s); or (B) in all other cases, be credited to the Chargor's Custody Account(s).
- (iv)
 - (1) Chargor and Secured Party agree to indemnify the Custodian on demand (on an after tax basis) and to hold it harmless against any and all tax for which the Custodian is or is sought to be made liable or accountable in respect of the Segregated Account(s) or the performance of the Custodian's obligations under this Agreement.
 - (2) The Chargor agrees to indemnify the Custodian on demand and to hold it harmless against any and all Losses (including claims by the Chargor or the Secured Party) which are sustained by the Custodian as a result of the Custodian's action or inaction in connection with this Agreement, except for those Losses arising out of the negligence, fraud, or wilful default of the Custodian, an affiliated company or a nominee company controlled by the Custodian or an affiliated company.

- (3) The Secured Party agrees to indemnify the Custodian and hold it harmless against any and all Losses which are sustained by the Custodian by reason of or as a result of (A) the negligence, fraud or wilful default of the Secured Party in any way relating to or arising from this Agreement or the Segregated Account(s) hereunder, and (B) any action taken or omitted by the Custodian pursuant to the Secured Party's Oral or Written Instructions, provided that the Secured Party shall not indemnify the Custodian in relation to the matters set out in this sub-clause 2.1(i)(iv)(3) to the extent that Losses arise due to the negligence, fraud or wilful default of the Custodian, an affiliated company or a nominee company controlled by the Custodian or an affiliated company. The Custodian and the Secured Party acknowledge and agree that (I) the Secured Party is not liable in its personal capacity under this sub-clause and (II) the Secured Party's liability under this sub-clause shall be limited to the amounts for the time being held by the Secured Party (in its capacity as trustee) under the Trust Deed. For the avoidance of doubt, nothing in this Agreement shall oblige the Secured Party to expend its own funds in respect of any claim made against the Secured Party pursuant to or in connection with this sub clause.
 - (4) If the Chargor is required to pay any amounts to the Custodian pursuant to clause 2.1(i)(iv)(2) above for which the Secured Party is liable under clause 2.1(i)(iv)(3) then the Secured Party shall, upon demand by the Chargor, promptly reimburse the Chargor for all such amounts.
 - (v) Notwithstanding the provisions of clause 2.1(i)(iv)(1), neither the Secured Party nor the Chargor shall be liable to the Custodian or release or hold harmless the Custodian in respect of any Losses that arise as a result of the negligence, fraud or wilful default of the Custodian.
 - (vi) It is expressly understood and agreed that the Custodian's right to indemnification under this Agreement shall be enforceable against the Secured Party and the Chargor directly, without any obligation first to proceed against any third party, and irrespective of any rights or recourse that the Secured Party or the Chargor may have against any such third party. This indemnity shall be a continuing obligation of the Secured Party and the Chargor, their respective successors and assigns, notwithstanding the termination of this Agreement.
- (j) **No Lien or Security Interest by the Custodian**

Subject to any lien claimed by a Sub-custodian or Clearing System, Posted Collateral in the Segregated Account(s) shall not be subject to any pledge, charge or other security interest, lien or right of set-off by the Custodian. However, Clearing Systems and Sub-custodians may have a security interest or lien over, or a right of set-off in relation to, the Posted Collateral, as provided in the applicable agreement with the Clearing System or Sub-custodian. Subject as aforesaid, the Custodian shall not pledge, charge, encumber, hypothecate, transfer, dispose of, or otherwise grant any such third party an interest in, any Posted Collateral.
- (k) Subject to the aforesaid, the Secured Party shall not pledge, charge, encumber, rehypothecate, transfer, dispose of or otherwise grant any third party an interest in any Posted Collateral.

2.2 Additional Terms

(a) Use of Sub-custodians

Without prejudice to the generality of clause 2.1(a) the Secured Party and the Chargor hereby authorise the Custodian to utilise Sub-custodians and Clearing Systems in connection with its performance hereunder as permitted by the terms of this Agreement and the Dealer Safekeeping Agreement, and acknowledge that:

- (i) The Custodian may appoint and utilise Sub-custodians and Clearing Systems in connection with its performance hereunder.
- (ii) Securities comprising Posted Collateral shall be held by the Custodian with a Sub-custodian or Clearing Systems in one or more individual client accounts, or one or more omnibus client accounts along with the securities of other customers of the Custodian, and, if held in such omnibus client accounts, will be treated as fungible with all other securities of the same issue held in such accounts. Each such Sub-custodian or Clearing Systems may then hold such Securities in an omnibus account with a third party that it engages (a "delegate"). Entitlement to Securities may not be identifiable by separate certificates or other physical documents of title, or an equivalent electronic record at any relevant Sub-custodian, Clearing Systems or delegate.
- (iii) If Property comprising Posted Collateral is held (directly or indirectly) with a Sub-custodian, Clearing Systems or delegate which defaults or becomes insolvent, or if BNYM becomes insolvent, the consequences for the Chargor or Secured Party (as applicable) will depend in part upon the relevant applicable law (which may not be English law), the effects of which are outside the control of BNYM. Where such a default or insolvency occurs, there may be (amongst other risks) delays in settling or transferring Property or, where BNYM, a relevant Sub-custodian, Clearing Systems or delegate held fewer securities than it should have for the benefit of all of its custody clients, there may be a shortfall. Any such shortfall may have to be shared pro rata among all persons whose securities are held by or at the relevant Sub-custodian, Clearing Systems or delegate and the Chargor or Secured Party (as applicable) may not receive its full entitlement. As a result, in the event of such a shortfall, there is a risk that not all Securities deposited by or with BNYM and held directly or indirectly with such Sub-custodian, Clearing Systems or delegate will be returned to Chargor or Secured Party (as applicable). In addition, in certain jurisdictions, it may not be possible under applicable local law for securities belonging to a customer of BNYM and held by BNYM at a Sub-custodian, Clearing Systems or delegate to be separately identifiable from the proprietary or other client assets of that Sub-custodian, Clearing Systems, delegate or BNYM.
- (iv) Where Property comprising Posted Collateral is held outside of the United Kingdom (or, if different, outside of the jurisdiction(s) in which either the Chargor or Secured Party is established), different settlement, legal and regulatory requirements and different practices relating to the separate identification of such Property may apply which are different from those in the United Kingdom (or the jurisdiction(s) of either the Chargor or Secured Party (as applicable)).

Furthermore, the parties acknowledge that, in the case of Korean Pledged Securities, "transfers" of the relevant Securities to or from the Segregated Accounts for the purposes of this Deed shall be given effect as: both (a) a transfer of such Securities to or from the Segregated Accounts; and as (b) an earmarking or release from earmarking of pledged Securities for the purposes of the relevant Clearing Systems and accounts maintained at the relevant Korean Sub-custodian, in each case as applicable.

(b) No Obligation regarding quality of Cash and Securities

Without limiting the generality of the foregoing, the Custodian shall be under no obligation to inquire into, and shall not be liable for, any Losses incurred by the Chargor, the Secured Party or any other person as a result of the receipt or acceptance of fraudulent, forged or invalid Securities, or Securities which otherwise are not freely transferable or deliverable without encumbrance in any relevant market.

(c) No responsibility concerning applicable Supplemental Trust Deed or Korean Law Security Agreement.

(i) The Chargor and the Secured Party hereby agree that, notwithstanding references to the Trust Deed, if applicable, the Korean Law Security Agreement and the Required Collateral Amount in this Agreement, the Custodian has no interest in, and no duty, responsibility or obligation with respect to, the Trust Deed, if applicable, the Korean Law Security Agreement or any agreement pursuant to which the Required Collateral Amount arises (including without limitation, no duty, responsibility or obligation to monitor the Chargor's or the Secured Party's compliance with, or to know the terms of, the Trust Deed, the Korean Law Security Agreement or any agreement pursuant to which the Required Collateral Amount arises).

(ii) Without limiting the provisions of clause 2.2(c)(i), the Chargor and the Secured Party agree that the Custodian has no responsibility or obligation with respect to whether the arrangements made pursuant to the Trust Deed or, if applicable, the Korean Law Security Agreement provide to the Secured Party a perfected security interest under applicable law. The Chargor and the Secured Party also acknowledge and agree that the Custodian shall not be liable for any Losses as a result of any different security interests applicable to the Korean Pledged Account(s) and the Segregated Account(s) and pursuant to the Korean Law Security Agreement and the Trust Deed respectively.

(iii) The Chargor and the Secured Party further agree that the Custodian is not (A) assuming any credit risk associated with any transaction effected between the Chargor and the Secured Party, which liabilities and risks are the responsibility of the Chargor and the Secured Party, (B) undertaking to make credit available to the Chargor or the Secured Party, or (C) liable for any Losses which result from the general risks in investing, or of investing or holding assets in, a particular holding or jurisdiction.

(d) **"Instructions"** shall normally be Written Instructions, provided that where it is not reasonably practicable for the party providing Instructions to do otherwise, such Instructions may take the form of Oral Instructions (subject always to below). The Custodian shall be under no obligation to enquire whether it was reasonably practicable for the party giving such Oral Instructions to do otherwise. All

Instructions from the Chargor or the Secured Party shall be communicated to the Custodian at the address, email address or telephone number (as applicable) specified in Annex 2 (as amended from time to time). Subject to the terms below, the Custodian shall be entitled to rely upon any Instructions actually received by the Custodian and reasonably believed by the Custodian to be duly authorised and delivered. The Chargor and the Secured Party agree to forward to the Custodian Written Instructions confirming Oral Instructions given by them by the close of business of the same day that such Oral Instructions are given to the Custodian. The Chargor and the Secured Party agree that the fact that such confirmatory Written Instructions are not received or that contrary Written Instructions are received by the Custodian shall in no way affect the validity or enforceability of transactions authorised by such Oral Instructions and effected by the Custodian. If the Custodian receives Written Instructions which, subject to the Custodian having actual knowledge to the contrary, appear on their face to have been transmitted by the Chargor or the Secured Party as applicable, via (i) email, the Internet or other non-secure electronic method provided that the Custodian has previously agreed with the Chargor or the Secured Party, as applicable, the purposes for which such non secure electronic methods may be used or (ii) secure electronic transmission containing applicable authorisation codes, passwords and/or authentication keys, the Chargor and the Secured Party each understands and agrees that the Custodian cannot determine the identity of the actual sender of such Written Instructions and that the Custodian shall conclusively presume that such Written Instructions have been sent by an Authorised Person. The Chargor and the Secured Party shall be responsible for ensuring that only Authorised Persons transmit such Written Instructions to the Custodian and that all Authorised Persons treat applicable user and authorisation codes, passwords and/or authentication keys with all reasonable care. The Chargor and the Secured Party each acknowledge and agree that it is fully informed of the protections and risks associated with the various methods of transmitting Written Instructions to the Custodian and that there may be more secure methods of transmitting Written Instructions than the method(s) selected by the Chargor or the Secured Party, as applicable. In no event shall the Custodian be liable for any Losses arising from the Custodian receiving or transmitting any data to the Chargor and/or the Secured Party (or any Authorised Person or any other person authorised or acting on their behalf) or acting upon any notice, instruction or other communications via any Electronic Means, except those Losses arising out of the Custodian's fraud, negligence or wilful default. The Custodian has no duty or obligation to verify or confirm that the person who sent such instructions or directions is, in fact, a person authorised to give instructions or directions on behalf of the Chargor and/or the Secured Party (or any Authorised Person or any other person authorised or acting on their behalf). The Chargor and the Secured Party agree that the security procedures, if any, to be followed in connection with a transmission of any such notice, instructions or other communications, including Written Instructions, provide to it a commercially reasonable degree of protection in light of its particular needs and circumstances.

(e) Fees and Expenses

The Custodian shall be entitled to receive and the Chargor agrees to pay to the Custodian such remuneration as may be agreed upon from time to time in writing between the Custodian and the Chargor and all reasonable disbursements properly incurred by the Custodian in connection with the performance of its duties under this Agreement. If for any Cash: (i) any recognised overnight benchmark rate or any official overnight interest rate set by a central bank or other monetary authority

is negative or zero; or (ii) any market counterpart or other institution applies a negative interest rate or any related charge to any account or balance of Custodian or its affiliates or any Chargor's Custody Account or balance opened for the Chargor by the Custodian, the Custodian may apply a charge to any of the Chargor's Custody Accounts or balances. Custodian will give Chargor prompt written notice of the application of any such charges and of the methodology by which they are applied. Chargor acknowledges and agrees that the application of a charge by the Custodian, including as referred to in this clause 2.2(e) may cause the effective interest rate applicable to a Chargor's Custody Account or balance to be negative, notwithstanding that one or more of the rates set by third parties specified in (i) or (ii) above may be zero.

(f) Reliance on Exchange Rate/Pricing Services

The Custodian is authorised to utilise any generally recognised currency exchange rate quotation service and any generally recognised pricing information service (including brokers and dealers of securities, Clearing Systems or Sub-custodians) in order to perform its valuation responsibilities under this Agreement, and the Chargor and the Secured Party agree that the Custodian shall not be liable for any Losses suffered or incurred by the Chargor or the Secured Party as a result of errors or omissions of any such exchange rate quotation service, pricing information service, broker or dealer provided that the selection of such exchange rate quotation service, pricing information service, broker or dealer was done in good faith.

(g) Force Majeure

The Custodian shall not be responsible or liable for any failure or delay in the performance of its obligations under this Agreement arising out of or caused, directly or indirectly, by circumstances beyond its reasonable control, including without limitation, acts of God, earthquakes, fires, floods, wars, civil or military disturbances, terrorism, sabotage, epidemics, riots, loss or malfunction of utilities, transportation, computer (hardware or software) or communications services, acts of civil or military authority, governmental, judicial or regulatory actions. The Custodian shall use its reasonable efforts to resume performance as soon as reasonably possible in the circumstances.

(h) Incentive Compensation Programme

The Custodian has adopted an incentive compensation programme designed (i) to facilitate clients gaining access to and being provided with explanations about the full range of products and services offered by the Custodian or any of its affiliated companies and (ii) to expand and develop client relationships. This programme may lead to the payment of referral fees and/or bonuses to employees of the Custodian or any of its affiliated companies who may have been involved in a referral that resulted in the obtaining of products or services by the Chargor or the Secured Party covered by this Agreement or which may be ancillary or supplemental to such products or services. Any such referral fees or bonuses are funded solely out of fees and commissions paid by the Chargor or the Secured Party under this Agreement or paid by the Chargor or the Secured Party with respect to such ancillary or supplemental products or services or paid by a third party on behalf of the Chargor or the Secured Party. Further details of the payment of referral fees will be provided to the extent required by applicable laws or regulations and only in accordance with applicable laws, regulations and other legal requirements and limitations. Should the Chargor or the Secured Party desire such further details, please contact your BNYM relationship manager.

(i) **Waiver of Immunity**

To the extent that in any jurisdiction any party may now or in the future be entitled to claim, for itself or its assets, immunity from suit, execution, attachment (before or after judgment) or other legal process, each party irrevocably agrees not to claim, and it hereby waives, such immunity in connection with this Agreement.

(j) **Confidentiality**

The parties will at all times respect the confidentiality of this Agreement and any arrangements or agreements made or entered into in connection with this Agreement and will not disclose to any other person, other than a party's auditors or professional advisers, any information acquired as a result of or pursuant to this Agreement unless required to do so by law, a regulatory authority, revenue authority, governmental body or an order of a court or regulatory authority or as otherwise agreed.

(k) **Other Disclosures.**

(i) The Secured Party and the Chargor each agree that the Custodian may use other BNYM entities and third parties in connection with its performance of the services and any other obligations under this Agreement and in certain other activities, including, without limitation, audit, accounting, tax, administration, risk management, credit, legal, compliance, operations, sales and marketing, relationship management, information technology, records and data storage, performance measurement, data aggregation and compilation and analysis of Party Information (collectively, the "**Activities**"). Notwithstanding anything to the contrary in this Agreement, and subject to its compliance with all applicable laws, including data protection / privacy laws, each BNYM entity may, in connection with the Activities or for any other purpose permitted under this Agreement, collect, use, store and disclose, within and outside of the European Economic Area (including but not limited to the United Kingdom, Australia, Canada, Cayman Islands, Hong Kong, India, Japan, the Republic of Korea, Singapore and the United States) the Party Information to: (A) other BNYM entities; and (B) third party service providers who are required to maintain the confidentiality of such Party Information. In addition, BNYM may aggregate Party Information (other than Personal Data) with other data collected and/or calculated by BNYM, and BNYM may use such aggregated data, provided that BNYM shall not distribute the aggregated data in a format that identifies the Secured Party or the Chargor or any particular individual after such aggregation. The Secured Party and the Chargor each consent to the disclosure of Party Information to governmental, tax, regulatory, law enforcement and other authorities in relevant jurisdictions where BNYM operates, provided that (A) such disclosure is required by law, rule or guideline (including tax reporting regulations) or has been requested by the relevant authorities with competent jurisdiction or as reasonably required to comply with the requirements of any market infrastructure or which is required in connection with holding or settlement of instruments in respect of the Posted Collateral, and (B) prior written notice is given to the Secured Party and/or the Chargor (as the case may be) where permitted by applicable law.

(ii) The Secured Party and the Chargor each confirms that with respect to any Party Information including Personal Data to BNYM hereunder, the Secured

Party and the Chargor each has lawful grounds to disclose such data to BNYM, and BNYM relies on such confirmation with respect any disclosure of Party Information, including Personal Data, as set out in this clause. As to any such Personal Data so received, BNYM and each BNYM entity shall process such data as a Data Controller and disclose Personal Data in accordance with this Agreement and the notice contained at <https://www.bnymellon.com/apac/en/privacy.jsp> ("**Personal Data Notice**"). For the avoidance of doubt, where consent is not required in the particular jurisdiction, each BNYM entity is providing notice of its collection, use, storage and disclosure of Personal Data in accordance with this Agreement and the Personal Data Notice, receipt of which is acknowledged by the Secured Party and the Chargor. The Secured Party and the Chargor each agrees that BNYM may make amendments and additions to this Personal Data Notice by posting a revised version of this Personal Data Notice at the abovementioned website link (or such other link as BNYM may advise the Secured Party or the Chargor from time to time). The Secured Party and the Chargor each agrees that its maintenance and/or continued use of any service provided by any BNYM entity and continued provision of Party Information (including Personal Data) to a BNYM entity after any such revised version is posted constitutes each of the Secured Party's and the Chargor's deemed confirmation that it continues to have lawful grounds to permit any BNYM entity to collect, use, store and disclose Personal Data in accordance with the revised Personal Data Notice.

- (iii) Where the Chargor is required to transfer Personal Data to the Secured Party and/or the Custodian and such transfer is an international transfer which is not subject to an appropriate transfer mechanism providing an adequate level of protection in compliance with applicable Data Protection Laws, then the parties shall comply with UK Model Clauses incorporated into this Agreement by reference or such other data transfer clauses that are reasonably necessary to satisfy applicable Data Protection Laws. For the UK Model Clauses the Chargor, being located in the UK and disclosing the Personal Data, will be the data exporter, and the Secured Party and/or the Custodian, being the party receiving the Personal Data, will be the data importer. The subject matter and duration of the Processing, the nature and purpose of the Processing, the type of Personal Data and categories of Data Subject relating to the international transfer will be confirmed on or as soon as reasonably practicable following execution of this Agreement by the Chargor to the Secured Party and/or the Custodian based on the form set out in Annex 5 to this Agreement.
- (iv) The parties shall comply with their respective obligations under Data Protection Laws.
- (v) The parties acknowledge and agree that they are separate and independent Data Controllers in relation to the Personal Data which they Process pursuant to this Agreement.
- (vi) To the extent that Data Protection Laws apply, the Disclosing Party warrants and undertakes that where it collects Personal Data which it subsequently transfers to the Receiving Party:
 - (1) it has collected the Personal Data fairly and lawfully; and

- (2) the disclosure of such Personal Data to the Receiving Party for the Permitted Purpose:
 - (A) is fair and lawful; and
 - (B) is provided for in its fair processing notices (where required by Data Protection Laws).
- (vii) Where the collection of Personal Data by the Disclosing Party, and subsequent transfer of Personal Data to the Receiving Party requires consent under Data Protection Laws, the Disclosing Party shall obtain all necessary consents from the Data Subjects. The Disclosing Party shall ensure that such consents permit:
 - (1) the disclosure of the Personal Data to the Receiving Party (and to third parties where required to do so under this Agreement); and
 - (2) the Receiving Party to Process the Personal Data for the Permitted Purposes.
- (viii) The parties shall promptly notify each other party in writing (including by email) if a Data Subject withdraws any consent provided pursuant to clause 2.2(k)(vii) above.
- (ix) The parties shall consult and co-operate with each other when responding to any communication, complaint, notice or access request, relating to Personal Data Processed pursuant to this Agreement.
- (x) In clause 2.2(k), "**BNYM**" and "**BNYM entity**" means The Bank of New York Mellon Corporation and/or each of its affiliated companies and associates (including each of their respective branches and representative offices, individually and/or collectively) acting either as the contracting entity under this Agreement or as service provider or intermediary to the Custodian, or otherwise in a relationship with the Secured Party or the Chargor; "**Party Information**" means data regarding each of the Secured Party, the Secured Party's affiliated companies and associates, the Chargor, the Chargor's affiliated companies and associates, the Chargor's Custody Account(s) and the Segregated Account(s) including Personal Data; "**Personal Data**" means personal data of employees and representatives of each of the Secured Party, the Secured Party's affiliated companies and associates, the Chargor and the Chargor's affiliated companies and associates and, where the Secured Party is the trustee of a trust, individual beneficiaries and employees and representatives of beneficiaries of that trust; "**Processing**" means any operation or set of operations which is performed on Party Information, Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction; and "**UK Model Clauses**" means the standard contractual clauses established pursuant to the UK Data Protection Act 2018 (or any successor standard contractual clauses that may be adopted from time to time). This clause 2.2(k) shall survive termination of this Agreement.

3. REPRESENTATIONS AND WARRANTIES

- 3.1 Each of the Custodian, the Secured Party and the Chargor represents and warrants to the other parties to this Agreement, which representations and warranties shall be deemed to be repeated on each day that this Agreement is in force, that:
- (a) it has all necessary power, and is duly authorised to execute and deliver this Agreement and to perform its obligations under this Agreement;
 - (b) it shall do and execute, or arrange for the doing and executing of, each reasonably necessary act, document and thing reasonably within its power to implement or carry out the purposes of this Agreement;
 - (c) this Agreement constitutes its legal, valid and binding obligations and the execution, delivery, and performance of this Agreement by it does not and will not and is not intended to avoid or violate any applicable laws or regulations or its constitutional documents and does not require the consent of any governmental or regulatory body except for such consents and approvals as have been obtained by it and which are, and shall remain, in full force and effect;
 - (d) the person signing this Agreement on its behalf is duly authorised to do so on its behalf;
 - (e) in respect of the Secured Party and the Chargor only, the person who represented the Secured Party and the Chargor respectively, in connection with the transfer of Eligible Collateral to any of the Segregated Account(s) and/or any Authorised Person providing the Custodian with Instructions in accordance with this Agreement, is duly authorised to do so on its behalf; and
 - (f) in the case of the Secured Party only, it shall not sell, assign, pledge, charge, encumber, rehypothecate, invest, use, commingle, transfer, dispose of or otherwise grant any third party an interest in any Posted Collateral.
- 3.2 Each of the Custodian, the Secured Party and the Chargor represents and warrants to the other parties to this Agreement that, as at the date of this Agreement, it is not and will not be deemed to be unable to pay its debts; is not and will not be deemed to be in a stoppage of payment situation; no application for the initiation of bankruptcy or any other moratorium or insolvency procedure has been or will have been made and no such procedures have been opened pursuant to any applicable law; and no decision has been made as to its winding-up or dissolution.
- 3.3 The Chargor represents and warrants to the Secured Party and the Custodian, which representations and warranties shall be deemed to be repeated on each day that this Agreement is in force, that in respect of Posted Collateral which comprises China Connect Securities it has appointed a Broker, and will use reasonable endeavours to maintain the appointment of a Broker while China Connect Securities are held in the Segregated Account(s). The Chargor acknowledges that the Broker will charge a brokerage fee of 30 basis points or at such rate as amended by the Broker from time to time for each sale transaction executed by the Broker in accordance with the Notice of Exclusive Control. It shall provide its Broker with and shall not revoke such instructions as may be required for the Custodian to sell Posted Collateral in the form of China Connect Securities in accordance with the Notice of Exclusive Control. The Chargor and the Secured Party further acknowledge that any proceeds of sale of China Connect Securities received by the Custodian in connection with this Agreement will be held in the Custodian's capacity as banker for the purposes of the FCA Rules relating to client money. For the avoidance of doubt, neither the Secured Party nor the Custodian shall be liable for any fees, costs or

liabilities of the Broker and the Secured Party acknowledges that the brokerage fee shall be deducted by the Broker from the proceeds of sale of China Connect Securities.

- 3.4 The Chargor represents and warrants that it owns the Cash and Securities in the Segregated Account(s) free and clear of all liens, claims, security interests and encumbrances (except those granted in the Supplemental Trust Deed and, if applicable, the Korean Law Security Agreement) and the Custodian is not an affiliated company of the Chargor.

4. SCOPE AND INTERPRETATION

- 4.1 For the avoidance of doubt, the arrangements detailed above shall apply only to the Segregated Account(s) and, if applicable, the Korean Law Security Agreement and the Korean Pledged Accounts and not to any other accounts as may be maintained by the Custodian for and on behalf of the Chargor from time to time.
- 4.2 The Custodian shall have no duties or responsibilities whatsoever except such duties and responsibilities as are specifically set forth in this Agreement and the Dealer Safekeeping Agreement, and no covenant or obligation shall be implied against the Custodian in connection with this Agreement.
- 4.3 This Agreement constitutes an amendment to the Dealer Safekeeping Agreement. In the event of any conflict between this Agreement and the Dealer Safekeeping Agreement, this Agreement shall prevail.

5. NOTICES

Any notice authorised or required by this Agreement shall be addressed to the receiving party and hand delivered or sent by post, or transmitted in pdf format attached to an email (in each case, with an original to follow as soon as reasonably practicable) to the individuals at the addresses specified in Annex 2 (as amended in writing from time to time). Such notice shall be effective upon receipt.

6. GOVERNING LAW

- 6.1 This Agreement and any non-contractual obligations arising out of or in connection with this Agreement shall be governed by and shall be construed in accordance with English law and the courts of England have exclusive jurisdiction to settle any dispute arising out of or in connection with this Agreement (including a dispute regarding the existence, validity or termination of this Agreement) or any non-contractual obligation arising out of or in connection with this Agreement. All Parties to this Agreement irrevocably submit to the exclusive jurisdiction of the courts of England and agree that such courts are the most appropriate and convenient courts to deal with any such actions and proceedings and, accordingly, they will not argue to the contrary.
- 6.2 A person who is not a party to this Agreement has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement but this does not affect any right or remedy which exists or is available apart from that Act.

7. TERMINATION

- 7.1 This Agreement shall terminate in accordance with clause 2.1(h) above.
- 7.2 The Chargor may terminate this Agreement upon giving not less than 30 days prior written notice to the other parties. The Custodian may terminate this Agreement:
- (a) upon giving not less than 180 days prior written notice to the other parties;

- (b) upon giving not less than 30 days prior written notice to the other parties of a breach by the Chargor or Secured Party of this Agreement in any material respect that has not been remedied within 24 hours of the giving of such notice; or
- (c) upon termination of the Dealer Safekeeping Agreement or other similar base agreement entered into between the Custodian and Chargor.

A termination date established pursuant to this paragraph is referred to herein as an **"Agreement Termination Date"**.

- 7.3 If this Agreement is terminated pursuant to clause 7.2(a) or Custodian terminates the Dealer Safekeeping Agreement or other similar base agreement with Chargor in the ordinary course of business, Custodian agrees to waive all transfer charges (including, for the avoidance of doubt, transfer charges imposed by any Sub-custodian or Clearing Systems utilized by Custodian hereunder) associated with the transfer of Securities and Cash from the Segregated Account(s). If this Agreement is terminated for any other reason, Chargor agrees to pay all charges associated with the transfer of Securities and Cash from the Segregated Account(s), to a successor custodian, which payments shall be made on or before the date of such transfer. In addition, upon receipt of a notice of termination of this Agreement pursuant to clause 7.2(b) or 7.2(c) above, Secured Party and Chargor agree that no new Cash and/or Securities will be credited to any of the Segregated Account(s). Until the Agreement Termination Date, Custodian shall, solely with respect to the Posted Collateral continue to perform its services hereunder. After the Agreement Termination Date, Custodian shall, at the Chargor's expense, continue to hold any Posted Collateral credited to the Segregated Account(s) for any Series with no further obligation to perform the services hereunder until it has received a Notice of Exclusive Control relating to that Series from the Secured Party or joint Written Instructions from Chargor and Secured Party directing the transfer of such Posted Collateral.

8. MISCELLANEOUS

- 8.1 The Custodian may, by written notice to the Secured Party and the Chargor, decline to take any action required by this Agreement if it reasonably believes that such action would be in breach of any law, regulatory requirement or court order or would require the consent of any governmental or regulatory body of competent jurisdiction.
- 8.2 Each party agrees and acknowledges that:
- (a) it has made its own independent decision to enter into this Agreement and as to whether this Agreement is appropriate or proper for it based upon its own judgment and upon advice from such advisers as it has deemed necessary;
 - (b) it is not relying on any communication (written or oral) of any other party to this Agreement as legal, tax, regulatory or commercial advice or as a recommendation to enter into this Agreement; and
 - (c) it is not guaranteeing the performance of any other party to this Agreement, or assuming any liability for, or undertaking any obligation to monitor or enforce, any party's obligations hereunder, or assuming any liability for any of the other parties' obligations under this Agreement or making any undertaking, representation or warranty regarding, the validity or enforceability of this Agreement on behalf of any of the other parties.
- 8.3 This Agreement may be executed in any number of counterparts each of which when executed and delivered is an original, but all the counterparts together constitute the same document.

- 8.4 If any one or more of the provisions or any part of such provision contained in this Agreement shall be or become invalid, illegal or unenforceable in any respect, the validity, legality and enforceability of the remaining provisions or parts of such provisions contained herein or therein shall in no way be affected, prejudiced or otherwise disturbed thereby.
- 8.5 This Agreement may not be amended or modified in any manner except by a written agreement executed by the parties hereto.
- 8.6 The Secured Party agrees to furnish to the Custodian a new Annex 3 in the event that any Authorised Person ceases to be an Authorised Person of the Secured Party or in the event that other additional Authorised Persons are appointed and authorised. Until such new Annex 3 is received by the Custodian, the Custodian shall be fully protected in acting in accordance with the Instructions of any Authorised Person in the last delivered Annex 3.
- 8.7 The Chargor and the Secured Party shall each do and execute, or arrange for the doing and executing of, any necessary act, document and thing reasonably within its power to implement this Agreement.
- 8.8 **Binding Agreement and Assignment**

This Agreement shall extend to and shall be binding upon the parties hereto, and their respective successors and assigns; provided however, that this Agreement shall not be assignable by any party without the written consent of the other parties, such consent not to be unreasonably withheld or delayed in the case of a party that is an affiliate of The Goldman Sachs Group, Inc., except that (a) the Custodian may upon prior written notice to the parties hereto assign or novate its rights and obligations under this Agreement to any subsidiary of The Bank of New York Mellon Corporation that is demonstrably capable of performing the obligations and delivering the services contemplated under this Agreement and with the necessary power and authority to perform its obligations hereunder or to any entity with which Custodian is merged or to whom Custodian transfers all or substantially all of its custody or collateral management business or the custody or collateral management business carried on by the branch through which it is acting for the purposes of this Agreement, and (b) the Chargor may upon prior written notice to the parties hereto assign or novate its rights and obligations hereunder to an entity in whatever form that succeeds to all or substantially all of the Chargor's assets or business ("**Successor Entity**") and that assumes such rights and obligations by contract, operation of law or otherwise; provided, that no such assignment and assumption shall be effective unless (i) if the Chargor prior to such assignment is regulated as a bank or broker dealer, the Successor Entity is regulated as a bank or broker dealer and is in good standing in all relevant jurisdictions, (ii) the Successor Entity has at the time of assignment a long-term unsubordinated debt rating that is not lower than BBB (S&P), Baa (Moody's) or BBB (Fitch), respectively, (iii) the Custodian has completed all necessary due diligence required to comply with applicable laws and regulations, (iv) the Successor Entity has entered into a novation agreement (or similar documentation acceptable to the Custodian under English law) with the Custodian and the Secured Party evidencing the assumption by the Successor Entity of the rights and obligations of the Chargor, and (v) either (A) the Chargor's obligations under its securities clearing or custody agreement and other base agreements with the Custodian and its obligations hereunder are legally enforceable against the Successor Entity by the other parties to this Agreement by operation of law, or (B) the Successor Entity and the Chargor have entered into a novation agreement (or similar documentation acceptable to the Custodian under English law) with the Custodian evidencing the assumption by the Successor Entity of the rights and obligations of the Chargor under the securities clearing or custody agreement or (C) the Successor Entity has entered into the Custodian's standard form of securities clearing or custody agreement and other base agreements as deemed necessary in the Custodian's reasonable but sole

discretion. The Secured Party may not assign or novate its right and/or obligations under this Agreement to any person without the prior written consent of the other parties. Upon any permitted assignment and assumption of this Agreement, the assigning party shall be relieved of and fully discharged from all obligations hereunder, whether such obligations arose before or after such assignment and assumption.

- 8.9 The Chargor (and not any of its underlying customers) will be BNYM's client for the purposes of the FCA Rules. The Chargor is classified as a professional client for the purposes of the application of the FCA Rules. Under the FCA Rules a greater degree of protection is provided to retail clients than to professional clients, and eligible counterparties receive the least protection. Professional clients have the right to request categorisation as a retail client. However, it is not the Custodian's policy in respect of this type of business to accept retail clients, and the Custodian is unlikely to be able to provide these services to the Chargor if the Chargor is categorised as a retail client. As the Chargor is a professional client, the Custodian is not required to evaluate the suitability of the services or instruments it may offer to the Chargor and hence the Chargor shall, in that respect, not be protected by the rules of conduct applicable in respect of retail clients.
- 8.10 The Secured Party shall not, as a result of the entry into or performance of this Agreement by the parties hereto, become a client of the Custodian for the purposes of the FCA Rules.
- 8.11 The Bank of New York Mellon is authorised and regulated by the New York State Department of Financial Services and the Federal Reserve and authorised by the Prudential Regulation Authority. The Bank of New York Mellon, London Branch is subject to regulation by the Financial Conduct Authority and limited regulation by the Prudential Regulation Authority. Details about the extent of our regulation by the Prudential Regulation Authority are available from the Custodian on request.
- 8.12 (a) The Chargor covenants and represents that neither it, nor any of its Affiliates, directors or officers is an individual or entity that is, or is owned or controlled by an individual or entity that is: (i) the target of Sanctions; or (ii) located, organized or resident in a country or territory that is, or whose government is, the target of comprehensive Sanctions (in relation to (ii) such Sanctions will be "comprehensive" in relation to a target if that target is a country or jurisdiction that is subject to broad sanctions that prohibit all commercial activity with that country or jurisdiction).
- (b) Throughout the term of this Agreement, the Chargor will have in place policies and procedures reasonably designed to prevent (i) violations of Sanctions, including measures intended to accomplish effective and timely scanning of all relevant data with respect to its clients and with respect to incoming or outgoing assets or transactions relating to this Agreement; and (ii) direct or indirect use of the services and/or accounts in any manner that would result in a violation of Sanctions by the Chargor or the Custodian.
- (c) The Chargor will promptly provide to the Custodian such information as the Custodian reasonably requests in connection with the matters referenced in this clause 8.12, including information regarding the Chargor, the accounts, the Property in relation to which services are to be provided and the source thereof, and the identity of any individual or entity having or claiming an interest therein. The Custodian may decline to act or provide services in respect of any account, and take such other actions as it, in its reasonable discretion, deems necessary or advisable, in connection with the matters referenced in this clause 8.12. If the Custodian declines to act or provide services as provided in the preceding sentence, except as otherwise prohibited by applicable law or official request, the Custodian will inform the Chargor as soon as reasonably practicable.

8.13 **Provision of information through a website.** The Chargor consents to the provision by the Custodian of the following information where not personally addressed to the Chargor, by means of the Information Website (which may or may not be in addition to other means of communication):

- (a) general information about the Custodian and its services;
- (b) information about the nature and risks of certain Securities;
- (c) information concerning the safeguarding of Securities and holding of client money;
- (d) information on costs and associated charges;
- (e) information about the Custodian's order handling and execution policies, conflicts of interest policies, complaints policies and other policies of the Custodian; and
- (f) any other information required to be provided to the Chargor under applicable law or regulation.

8.14 **Acknowledgement of receipt of disclosure.** The Chargor acknowledges that it has received and read the terms of the Regulatory Information Document.

8.15 **Opt-In to U.S. Special Resolution Regimes.**

- (a) In the event that the Secured Party or the Chargor is a Covered Entity (as defined below), and such party (the "**Covered Entity Party**") becomes subject to a proceeding under a U.S. special resolution regime, the transfer of this Agreement (and any interest and obligation in or under, and any property securing, this Agreement) from such Covered Entity Party will be effective to the same extent as the transfer would be effective under the U.S. special resolution regime if this Agreement (and any interest and obligation in or under, and any property securing, this Agreement) were governed by the laws of the United States or a state of the United States.
- (b) In the event that the Covered Entity Party or any of its "affiliates" (as such term is defined in 12 U.S.C. § 1841(k)) becomes subject to a proceeding under a U.S. special resolution regime, default rights with respect to this Agreement that may be exercised against such Covered Entity Party are permitted to be exercised to no greater extent than the default rights could be exercised under the U.S. special resolution regime if this Agreement were governed by the laws of the United States or a state of the United States.
- (c) If all the parties to this Agreement have previously adhered to, or subsequently all the parties adhere to, the ISDA 2018 U.S. Resolution Stay Protocol as published by the International Swaps and Derivatives Association, Inc. as of 31 July 2018 (the "**US Protocol**"), the terms of such US Protocol shall be incorporated into and form a part of this Agreement and the terms of the US Protocol shall supersede and replace this clause 8.15 and (i) the Covered Entity Party shall be deemed to be a "Regulated Entity", and each other party shall be deemed to be an "Adhering Party", and (ii) this Agreement shall be deemed to be a "Protocol Covered Agreement" (each, as defined in the US Protocol). In the event of any inconsistencies between this Agreement and the US Protocol, the US Protocol will prevail.
- (d) For the purposes of this clause 8.15:

"Covered Entity" shall mean a "covered entity" as defined in 12 C.F.R. §252.82, a "covered FSI" as defined in 12 C.F.R. §382.2 or a "covered bank" as defined in 12 C.F.R. §47.3.

"default right" shall mean "default right" as defined in 12 C.F.R. §252.81.

"U.S. special resolution regimes" means the Federal Deposit Insurance Act (12 U.S.C. 1811–1835a) and regulations promulgated thereunder and Title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5381–5394) and regulations promulgated thereunder.

- (e) Except as provided above, the foregoing does not in any way modify, affect or amend the other duties, rights and obligations of each of the parties under this Agreement.

8.16 **EU Legislation, Regulatory Requirements and Guidance.** Unless the context otherwise requires, any reference to EU legislation, regulatory requirement, or guidance (including any concepts as defined therein) should be read as a reference to that EU legislation, regulatory requirement or guidance (including any concepts as defined therein) as it forms part of UK domestic law pursuant the European Union (Withdrawal) Act 2018 (as amended) or as otherwise adopted under, or given effect to in, UK legislation or the UK regulatory regime and any references to EU competent authorities should be read as references to the relevant UK competent authority. All references to legislation, regulatory requirements or guidance in this clause refer to the relevant legislation, regulatory requirements or guidance as amended from time to time.

SIGNATURE BLOCK

IN WITNESS WHEREOF this Agreement has been executed as a DEED and delivered on the date stated at the beginning of this Agreement.

Executed as a Deed by:

The Bank of New York Mellon,)
London Branch)

in its capacity as Secured Party

acting by

Its duly authorised signatory

Authorised signatory

Authorised signatory

EXECUTED AS A DEED and **THE COMMON SEAL** of **Goldman Sachs International** was duly affixed and signed by either two Directors, two Managing Directors or a Director/Managing Director and a Secretary duly authorised by, and pursuant to, the resolution of the Board of Directors of Goldman Sachs International dated 29 March 2011, on the date stated at the beginning of this Deed.

By: _____
Name:
Managing Director

By: _____
Name:
Managing Director/Secretary

EXECUTED AS A DEED BY

**THE BANK OF NEW YORK MELLON,
LONDON BRANCH**

in its capacity as Custodian

acting by its duly authorised signatory

Name:

$$\begin{array}{c}) \\) \\) \\) \\) \\) \\) \end{array}$$

Signature:

ANNEX 1

Form Of Notice Of Exclusive Control

From: The Bank of New York Mellon, London Branch (the "**Secured Party**") at 160 Queen Victoria Street, London, EC4V 4LA

To: The Bank of New York Mellon, London Branch (the "**Custodian**") at 160 Queen Victoria Street, London, EC4V 4LA

Copy: Goldman Sachs International (the "**Chargor**") at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU

Re: **NOTICE OF EXCLUSIVE CONTROL – SERIES []-[]**

We refer to the master triparty account control agreement by and among the Custodian, the Chargor and the Secured Party dated [] (the "**Agreement**"). Capitalised terms used herein shall have the meaning ascribed to them in the Agreement.

This notice constitutes a Notice of Exclusive Control in relation to Series []-[] only for the purposes of the Agreement. The Secured Party hereby requests the Custodian (1) to act solely upon our Instructions with respect to the Segregated Account(s) for Series []-[] in accordance with clauses 2.1(e) and 2.1(f)(i) of the Agreement, and (2) as soon as reasonably practicable accept no further instructions from the Chargor with regard to the operation of such Segregated Account(s) or the transfer of any assets out of such Segregated Account in accordance with clause 2.1(f)(ii) of the Agreement.

[The Secured Party confirms that it has sent a Notice of Intended Enforcement to the Custodian (to forward to the Korean Sub-custodian) at the same time as this notice. The Secured Party hereby requests the Custodian to forward to the Korean Sub-custodian the Notice of Intended Enforcement under the Korean Law Security Agreement as soon as reasonably practicable following receipt of such notice from us.]¹

We hereby instruct you to deliver the Posted Collateral [(other than China Connect Securities)] in relation² to Series []-[] to us as follows:

[Specify Delivery Instructions]

[In respect of Posted Collateral that are China Connect Securities, we hereby instruct you to instruct Broker to sell the Posted Collateral, and to credit the proceeds of such sale received by you from Broker (net of any applicable fees, costs, expenses, charges or tax in connection with such sale) to us at the following account:

[Specify Offshore CNY Bank Account Details]]³

Yours faithfully

Authorised Person

For and on behalf of

The Bank of New York Mellon, London Branch in its capacity as the Secured Party

¹ Only to be inserted where Posted Collateral includes Korean Pledged Securities.
² Only to be inserted where Posted Collateral includes China Connect Securities.
³ Only to be inserted where Posted Collateral includes China Connect Securities.

ANNEX 2

Addresses for Service of Notices and Instructions

TO THE BANK OF NEW YORK MELLON, LONDON BRANCH, in its capacity as Custodian:

Notices Relating to Annex 1

The Bank of New York Mellon, London Branch
160 Queen Victoria Street
London EC4V 4LA, U.K.
Attn: Clearance and Collateral Management
Email: Triparty_default@bny.com

All Other Notices

The Bank of New York Mellon, London Branch
160 Queen Victoria Street
London EC4V 4LA, U.K.
Attn: Clearance and Collateral Management
Email: internationalcollateralmanagement@bny.com

Part II – Instructions

TO BNYM:

The Bank of New York Mellon
The Bank of New York Mellon, London Branch
160 Queen Victoria Street
London EC4V 4LA, U.K.
Attn: Clearance and Collateral Management
Email: CollateralManagement@bnymellon.com

TO THE BANK OF NEW YORK MELLON, LONDON BRANCH, in its capacity as Secured Party:

160 Queen Victoria Street,
London EC4V 4LA
Attn: Trustee Administration Manager

TO GOLDMAN SACHS INTERNATIONAL, in its capacity as Chargor:

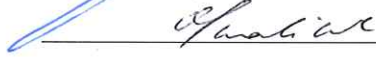
Goldman Sachs International
Plumtree Court
25 Shoe Lane,
London EC4A 4AU
United Kingdom
Attn: Global Liquidity Products - gs-glp-notifications@gs.com

ANNEX 3

Authorised Persons

The following individuals have been designated as Authorised Persons of the Secured Party in connection with this Agreement among The Bank of New York Mellon, London Branch as Secured Party, Goldman Sachs International as Chargor and The Bank of New York Mellon, London Branch as Custodian.

The Bank of New York Mellon, London Branch

Name	Signature
GIUSEPPA FONZO	
PICOLAI GNACTUC	

ANNEX 4

Confirmation Instruction

To: The Bank of New York Mellon, London Branch

Attn: The Bank of New York Mellon Clearance Collateral Management

Tel no: To be provided during onboarding

Copy: Goldman Sachs International (as Chargor)

[●]

Transaction details:

Secured Party name: THE BANK OF NEW YORK MELLON, LONDON BRANCH

Chargor name: GOLDMAN SACHS INTERNATIONAL

Series: [][]

Required Collateral Amount	Currency

On behalf of:

Signature of Authorised Person:

Name of Authorised Person:

Date:

ANNEX 5

Form of Personal Data Transfer

Data Subjects

[•]

Purposes of the transfer(s)

The transfer is made for the following purposes:

[•]

Categories of data

The personal data transferred concern the following categories of data (please specify):

[•]

Recipients

The personal data transferred may be disclosed only to the following recipients or categories of recipients:

[•]

Sensitive data (if appropriate)

The personal data transferred concern the following categories of sensitive data:

[•]

Additional useful information (storage limits and other relevant information):

[•]

Contact points for data protection enquiries:

[•]

ANNEX 6

Notice of Korean Pledge

From: Goldman Sachs International (the "**Chargor**") at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU

To: *[name of Korean Sub-Custodian]* (the "**Korean Sub-Custodian**") at *[insert registered address of Korean Sub-Custodian]*

Cc: The Bank of New York Mellon, London Branch (the "**Secured Party**") at 160 Queen Victoria Street, London, EC4V 4LA

The Bank of New York Mellon, London Branch (the "**Custodian**") at 160 Queen Victoria Street, London, EC4V 4LA

Re: **NOTICE OF KOREAN PLEDGE – SERIES []-[]**

We refer to the master triparty account control agreement by and among the Custodian, the Chargor and the Secured Party dated [●] (the "**Agreement**") and the Korean law security agreement entered into between the Chargor and the Secured Party dated [●] (the "**Korean Law Security Agreement**"). Capitalised terms used herein shall have the meaning ascribed to them in the Agreement, or the Korean Law Security Agreement, as applicable.

We hereby notify you that the Chargor has granted a first priority pledge (*Kun Jil Kwon*) in (i) Eligible Korean Securities held in the Korean Securities Account (account number: [●]) and (ii) all of our rights, titles and interests in and to the cash accounts set out below (the "**Korean Cash Accounts**") opened in accordance with instructions submitted by the Custodian, acting through its affiliate The Bank of New York Mellon SA/NV, with *[insert name of Korean Sub-Custodian]* (account number: [●]) in favour of the Secured Party to secure its obligations arising under the Agreement and the delivery of Korean Pledged Securities to the Secured Party shall constitute a declaration by the Chargor to pledge the relevant Korean Pledged Securities.

KRW Korean Cash Account(s)

- Account Number:

- Name of the Secured Party:

USD Korean Cash Account(s)

- Account Number:

- Name of the Secured Party:

Upon the occurrence of an Enforcement Event under the Korean Law Security Agreement, we hereby authorize and instruct you that you shall follow any instruction given by the Secured Party after service of the Notice of Intended Enforcement without requiring any evidence of default by us or without any consent by us and take all necessary measures to transfer title to (i) the Korean Pledged Securities and (ii) any amount standing to our credit in the Korean Cash Accounts, as required under Korean law.

This letter shall be governed by, and construed in accordance with, the laws of the Republic of Korea.

Dated as of this [●] day of [●], [●].

Yours faithfully,

By: Goldman Sachs International

Name:

Title:

[FIXED-DATE STAMP]⁴

⁴

To be effected by a method recognised under Korean law, such as a certain certified mail through a Korean post office, date stamp by a registry office or notarisation by a Korean notary, to evidence the date of notice document for perfection purposes.

ANNEX 7

Notice of Acknowledgement and Consent

From: *[name of Korean Sub-Custodian]* (the "**Korean Sub-Custodian**") at *[insert registered address of Korean Sub-Custodian]*

To: Goldman Sachs International (the "**Chargor**") at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU

Copy: The Bank of New York Mellon, London Branch (the "**Secured Party**") at 160 Queen Victoria Street, London, EC4V 4LA

The Bank of New York Mellon, London Branch (the "**Custodian**") at 160 Queen Victoria Street, London, EC4V 4LA

Re: **NOTICE OF KOREAN PLEDGE – ACKNOWLEDGEMENT AND CONSENT - SERIES []-[]**

We acknowledge receipt of a Notice of Korean Pledge (the "**Notice**") dated [●] in connection with the master triparty account control agreement by and among the Custodian, the Chargor and the Secured Party dated [●] (the "**Agreement**") and the Korean law security agreement entered into between the Chargor and the Secured Party dated [●] (the "**Korean Law Security Agreement**"). Capitalised terms used herein shall have the meaning ascribed to them in the Agreement, or the Korean Law Security Agreement, as applicable.

We hereby confirm that (i) upon the occurrence of an Enforcement Event under the Korean Law Security Agreement and upon receipt of the Notice of Intended Enforcement, we will follow any instruction given by the Secured Party and take all necessary measures to transfer title to the Korean Pledged Securities and any amount standing to our credit in the Korean Cash Accounts, as required under Korean law and (ii) upon receipt of a Notice of Termination of Korean Pledge, we will follow any instruction given by the Secured Party and take all necessary measures to release the Korean Pledged Securities and any rights, titles and interests in and to the Korean Cash Accounts that are pledged to the Secured Party.

This letter shall be governed by, and construed in accordance with, the laws of the Republic of Korea.

Dated as of this [●] day of [●], [●].

Yours faithfully,

By: *[name of the Korean Sub-custodian]*

Name:

Title:

[FIXED-DATE STAMP]

ANNEX 8

Notice of Termination of Korean Pledge

From: The Bank of New York Mellon, London Branch (the "**Secured Party**") at 160 Queen Victoria Street, London, EC4V 4LA

To: *[name of Korean Sub-Custodian]* (the "**Korean Sub-Custodian**") at *[insert registered address of Korean Sub-Custodian]*

Cc: Goldman Sachs International (the "**Chargor**") at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU

The Bank of New York Mellon, London Branch (the "**Custodian**") at 160 Queen Victoria Street, London, EC4V 4LA

Re: **NOTICE OF TERMINATION OF KOREAN PLEDGE – SERIES []-[]**

We refer to the master triparty account control agreement by and among the Custodian, the Chargor and the Secured Party dated [●] (the "**Agreement**") and the Korean law security agreement entered into between the Chargor and the Secured Party dated [●] (the "**Korean Law Security Agreement**"). Capitalised terms used herein shall have the meaning ascribed to them in the Agreement, or the Korean Law Security Agreement, as applicable.

We hereby notify you that the Korean Law Security Agreement was terminated as of *[date]* and accordingly instruct you to remove the record of the security interest created over all of the Korean Pledged Securities and any rights, titles and interests in and to the cash accounts set out below (the "**Korean Cash Accounts**") from the (i) Korean Securities Account and (ii) the Korean Cash Accounts opened in accordance with instructions submitted by the Custodian, acting through its affiliate The Bank of New York Mellon SA/NV, with *[insert name of Korean Sub-Custodian]*.

KRW Korean Cash Account(s)

- Account Number:

- Name of the Secured Party:

USD Korean Cash Account(s)

- Account Number:

- Name of the Secured Party:

This letter shall be governed by, and construed in accordance with, the laws of the Republic of Korea.

Dated as of this [●] day of [●], [●].

Yours faithfully,

By: The Bank of New York Mellon, London Branch

Name:

Title:

ANNEX 9

Notice of Intended Enforcement

From: The Bank of New York Mellon, London Branch (the "**Secured Party**") at 160 Queen Victoria Street, London, EC4V 4LA

To: *[name of Korean Sub-Custodian]* (the "**Korean Sub-Custodian**") at *[insert registered address of Korean Sub-Custodian]*

Cc: Goldman Sachs International (the "**Chargor**") at Plumtree Court, 25 Shoe Lane, London, EC4A 4AU

The Bank of New York Mellon, London Branch (the "**Custodian**") at 160 Queen Victoria Street, London, EC4V 4LA

Re: [] (**FOREIGN INVESTOR ID NO. [] – NOTICE OF INTENDED ENFORCEMENT - SERIES []-[]**)

We refer to the master triparty account control agreement by and among the Custodian, the Chargor and the Secured Party dated [●] (the "**Agreement**") and the Korean law security agreement entered into between the Chargor and the Secured Party dated [●] (the "**Korean Law Security Agreement**"). Capitalised terms used herein shall have the meaning ascribed to them in the Agreement, or the Korean Law Security Agreement, as applicable.

We hereby inform you of our intention to enforce our security interest in respect of the securities pledged to us and held in the Korean Securities Account no. [●], and the cash accounts no. [●] opened in accordance with instructions from the Custodian, acting through its affiliate The Bank of New York Mellon SA/NV (the "**Korean Cash Accounts**"), following the occurrence of an Enforcement Event under the Korean Law Security Agreement.

Pursuant to such enforcement action, to the extent permitted by and in accordance with applicable law, we instruct you to take the following actions:

- (i) forthwith to report the enforcement to the Financial Supervisory Service as required by the relevant law and/or to obtain any other acknowledgements and/or approvals required in connection with such enforcement and, upon approval, either;
 - a. transfer all securities pledged to us in the Korean Securities Account to our securities account number [●], with *[name of sub-custodian]*; or
 - b. transfer the securities pledged to us in the Korean Securities Account to *[insert account number]* with *[name of broker]* for the purpose of settling the sell order placed with said broker to enforce the security interest in respect of the securities;
- (ii) on behalf of Secured Party, submit a post-report or pre-approval request for FOL (Foreign Ownership Limit) stock to the Financial Supervisory Service as required by the relevant law in connection with the Secured Party's enforcement of security interest; and
- (iii) convert any and all amounts deposited in the Korean Cash Account(s) to foreign currency and transfer to an overseas cash account designated by the Secured Party.

Nothing in this notice shall prevent the Secured Party from issuing further instructions in respect of the securities pledged to us presently held in or subsequently received into the Securities Account.

This notice shall be governed by, and construed in accordance with, the laws of the Republic of Korea.

Yours faithfully,

Authorised Person

For and on behalf of

The Bank of New York Mellon, London Branch

pls sign for GS Korea

Final Audit Report

2026-06-16

Created:	2026-06-16
By:	Form eSign (bny.mellon.esign@bnymellon.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAK_s2w4seH1fw8ehCrgCpvvEPT6clvQNA

"pls sign for GS Korea" History

-  Document created by Form eSign (bny.mellon.esign@bnymellon.com)
2026-06-16 - 1:34:26 PM GMT- IP address: 160.254.20.253
-  Waiting for Signature by stuart.bird@bny.com
2026-06-16 - 1:34:47 PM GMT
-  Agreement viewed by stuart.bird@bny.com
Agreement hosted by Form eSign (bny.mellon.esign@bnymellon.com)
2026-06-16 - 1:40:47 PM GMT- IP address: 160.254.20.253
-  Signer stuart.bird@bny.com entered name at signing as Stuart Bird
2026-06-16 - 1:41:23 PM GMT- IP address: 160.254.20.253
-  Document e-signed by Stuart Bird (stuart.bird@bny.com)
Signing Link is created by Form eSign (bny.mellon.esign@bnymellon.com)
Signature Date: 2026-06-16 - 1:41:25 PM GMT - Time Source: server- IP address: 160.254.20.253 - Signature Appearance Selected: IMAGE
-  Agreement completed.
2026-06-16 - 1:41:25 PM GMT